

(2) For the purposes of this Act the expression "consideration" includes valuable consideration of any kind; the expression "agent" includes any person employed by or acting for another; and the expression "principal" includes an employer.

(3) A person serving under the Crown or under any corporation or any municipal, borough, county, or district council, or any board of guardians, is an agent within the meaning of this Act.

2.—(1) A prosecution for an offence under this Act shall not be instituted without the consent, in England of the Attorney-General or Solicitor-General, and in Ireland of the Attorney-General or Solicitor-General for Ireland. Prosecution of offences.

(2) The Vexatious Indictments Act, 1859, as amended by 22 & 23 Vict., c. 17, any subsequent enactment, shall apply to offences under this Act as if they were included among the offences mentioned in section one of that Act.

(3) Every information for any offence under this Act shall be upon oath.

(4) The expenses of any prosecution on indictment under this Act shall be defrayed as in cases of indictment for felony.

(5) A court of quarter sessions shall not have jurisdiction to inquire of, hear, and determine prosecutions on indictments for offences under this Act.

(6) Any person aggrieved by a summary conviction under this Act may appeal to a court of quarter sessions.

3. This Act shall extend to Scotland, subject to the following modifications:— Application to Scotland.

(1) Section two shall not extend to Scotland:

(2) In Scotland all offences which are punishable under this Act on summary conviction shall be prosecuted before the sheriff in manner provided by the Summary Jurisdiction (Scotland) Acts.

4.—(1) This Act may be cited as the Prevention of Corruption Act, 1906. Short title and commencement.

(2) This Act shall come into operation on the first day of January nineteen hundred and seven.

CHAPTER 35.

An Act to amend the Fatal Accidents Inquiry (Scotland) Act, 1895, and to make further provision for Inquiry into Sudden and Suspicious Deaths in Scotland.

[4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Short title.

1. This Act may be cited as the Fatal Accidents and Sudden Deaths Inquiry (Scotland) Act, 1906.

Verdicts to be returned.

2. Subsection (7) of section four of the Fatal Accidents Inquiry (Scotland) Act, 1895, is hereby repealed, and, in lieu thereof, be it enacted that the jury, after hearing the evidence and the persons, if they so desire, appearing thereon, including any person duly authorised by any trades union or friendly society of which the deceased was a member, and the summing up by the sheriff, if he shall consider such summing up necessary or proper, shall return a verdict setting forth, so far as such particulars have been proved, when and where the accident and the death or deaths to which the inquiry relates took place, the cause or causes of such accident or death or deaths, the person or persons, if any, to whose fault or negligence the accident is attributable, the precautions, if any, by which it might have been avoided, any defects in the system or mode of working which contributed to the accident, and any other facts disclosed by the evidence which, in the opinion of the jury, are relevant to the inquiry.

Public inquiries.

3. In any case of sudden or suspicious death in Scotland, the Lord Advocate may, whenever it appears to him to be expedient in the public interest, direct that a public inquiry into such death and the circumstances thereof shall be held; and the public inquiry so directed to be held shall take place according to the forms and procedure prescribed by the Fatal Accidents Inquiry (Scotland) Act, 1895, as altered by this Act.

Repeal of
58 & 59 Vict.
c. 36. s. 4,
s.s. 10.

4. Subsection ten of section four of the Fatal Accidents Inquiry (Scotland) Act, 1895, is hereby repealed, and in lieu thereof be it enacted as follows, namely:—

The jury shall be cited by the sheriff clerk from the sheriff court jury book in the manner provided by statute for the citation of jurors in civil cases in Scotland, and the existing statutory provisions relative to fines for non-attendance of jurors and to the swearing of jurors shall apply to inquiries under this Act; but no person shall be summoned to attend to serve as a juror in any inquiry held under this Act who resides beyond such distances from the court-house or other building at which the inquiry is held as may from time to time be fixed by the several sheriffs of the several counties, with the approbation of the Secretary for Scotland.

CHAPTER 36.

An Act to amend the law relating to Musical Copyright.

[4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: